

Amendment No. 1 to HB1538

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1631

House Bill No. 1538*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-903(a)(5), is amended by deleting the subdivision.

SECTION 2. Tennessee Code Annotated, Section 39-13-903(b)(1), is amended by deleting the language "(a)(1)-(5)" and substituting "(a)(1)-(4)".

SECTION 3. Tennessee Code Annotated, Section 39-16-201(b), is amended by adding the following as a new subdivision:

(3) Knowingly use an unmanned aircraft over any portion of a property that includes a correctional facility. As used in this section, "unmanned aircraft" means the same as defined in § 39-13-901. This subdivision (b)(3) does not apply to the use of an unmanned aircraft by:

(A) Any branch of the United States military, the military forces of this state, or the Tennessee emergency management agency;

(B) The department of correction or a private provider contracted with the department to operate a correctional facility; or

(C) A law enforcement officer or other state or local government official engaged in official duties.

SECTION 4. Tennessee Code Annotated, Section 39-16-201(c)(1), is amended by deleting the subdivision and substituting:

(1) A violation of subdivision (b)(1)(A), (b)(2)(A), or (b)(3) is a Class C felony.

SECTION 5. Tennessee Code Annotated, Section 39-16-201, is amended by adding the following as a new subsection:

(d) A correctional facility employee may disable an unmanned aircraft that is operating over property that includes a correctional facility in violation of subdivision (b)(3) to the extent consistent with federal law and regulations, including those of the federal communications commission. The correctional facility and the correctional facility employee are not liable for damage to the unmanned aircraft as a result of being disabled.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.